

§387(d)(1)(B).) This section has no application as 1) there is no pending disposition that may impair or impede Terracotta's ability to protect its interest.

As to discretionary intervention, pursuant to CCP section 3879d)(2), "[t]he court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both. Again, there is nothing left to litigate, so Terracotta does not have an interest in the matter of the litigation or the success of either party or have an interest against both. Further, "the court [only] has discretion to permit a nonparty to intervene where the following factors are met: 1) the proper procedures have been followed, 2) the nonparty has a direct and immediate interest in the action, 3) the intervention will not enlarge the issues in the litigation, and 4) the reasons for the intervention outweigh any opposition by the parties presently in the action. (*Siena Court Homeowners Assn. v. Green Valley Corp.* (2008) 164 Cal.App.4th 1416, 1428.) While Terracotta has followed the proper procedures none of the other factors are present.

This case has been fully litigated and the permanent injunction at issue has been affirmed by the Court of Appeal without a subsequent appeal having been filed. Further, as Terracotta seeks intervention to challenge the enforceability of the permanent injunction in light of the enactment of AB 1050 (effective January 1, 2026) there is already a pending lawsuit between Plaintiffs and Terracotta regarding that issue. For all of these reasons, the court denies the motion.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2301806	LANGSTON vs CITY OF RIVERSIDE	MOTION TO TAX COSTS

Tentative Ruling:

Summary of Ruling: The court taxes \$233,385.08 in total, reducing Defendants' requested costs from \$358,788.51 to \$125,403.43.

Factual / Procedural Context:

On 4/7/23, Plaintiffs Thomas Langston and Judy Langston filed this wrongful death action arising from a 6/15/15 vehicle collision involving their son, Decedent David Langston, and Defendant Victor Lee Schmitz, a police officer hired by Defendant City of Riverside. Plaintiffs filed the First Amended Complaint ("FAC") on 9/15/23. Plaintiffs alleged wrongful death claims in their individual capacities and survival claims as successors-in-interest. On 5/22/26, the jury returned a unanimous verdict in favor of Defendants. On 7/2/26, Defendants served an amended memorandum of costs seeking \$358,788.51.

Now, Plaintiffs move to strike or tax these costs. Plaintiffs argue that Defendants' separate CCP §998 offers of \$7,500 to each Plaintiff were invalid because each offer required an unattached and unspecified release of *all* claims, and a dismissal of the entire

action. Plaintiffs further argue that the offers were token or nominal, and not made in good faith. Plaintiffs therefore seek to strike expert witness fees, court reporter and transcript fees, deposition costs, service of process costs, and investigation expenses, arguing that they are prohibited, duplicative, or excessive.

In opposition, Defendants argue they are entitled to costs as the prevailing parties. They argue that the §998 offers were valid and reasonable because Defendants consistently maintained that Plaintiffs could not prove causation, and that the jury ultimately returned a defense verdict. Defendants assert that the remaining costs were reasonably necessary because the case involved extensive medical evidence in various states, multiple waivers and subpoenas in various forms, multiple experts, among other discoveries. Defendants contend that the \$4,331.76 investigation expenses should be removed.

In reply, Plaintiffs argue that the burden shifted to Defendants on every challenged item, but Defendants provided no evidence addressing the particular cost objections. Plaintiffs also contend that the offers were conditioned on terms neither Plaintiff could independently perform. They assert that Defendants did not substantiate the challenged expert, deposition, service, or court reporter charges.

Analysis

If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. (*Ladas v. California State Automotive Association* (1993) 19 Cal.App.4th 761, 773-774.) “A verified memorandum of costs is prima facie evidence of their propriety,” and the opposing party has the burden to demonstrate that they are not proper. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266.) A verified memorandum does not require copies of bills, invoices or other documentation to be attached. (*Id.* at 1267.) If the costs are properly objected to, they are placed at issue, and the burden of proof is on the party claiming them. (*Ladas v. California State Automotive Association*, *supra*, 19 Cal.App.4th at 774.)

CCP §1033.5 identifies allowable and prohibited costs. Even an allowable cost must be “reasonably necessary to the conduct of the litigation” and “reasonable in amount.” (CCP § 1033.5(a)-(c).)

The primary issue here is whether Defendants’ section 998 offers support an award of expert witness fees of \$218,925.93.

A defendant whose offer is not accepted and who obtains a more favorable judgment or award may recover post-offer costs of the services of expert witnesses, in the court’s discretion. Those fees must have been actually incurred and reasonably necessary in preparing for or conducting trial. (CCP § 998(c)(1).) “Where ... the offeror obtains a judgment more favorable than its offer, the judgment constitutes prima facie evidence showing the offer was reasonable and the offeror is eligible for costs as specified in section 998.” (*Santantonio v. Westinghouse Broadcasting Co.* (1994) 25 Cal.App.4th 102, 117; emphasis added.) “The burden is on the party complaining to establish an abuse of discretion, and unless a clear case of abuse is shown and unless there has been a

miscarriage of justice a reviewing court will not substitute its opinion and thereby divest the trial court of its discretionary power.” (*Clark v. Optical Coating Laboratory, Inc.* (2008) 165 Cal.App.4th 150, 185-186 (internal quotations omitted).) Whether a section 998 offer was reasonable is determined by the circumstances existing at the time the offer was made. (*Fortman v. Hemco, Inc.* (1989) 211 Cal.App.3d 241, 264.) The offer must be sufficiently certain to permit the offeree to evaluate and accept it without further negotiation. (*Sanford v. Rasnick* (2016) 246 Cal.App.4th 1121, 1131-32.)

Here, Defendants served a separate \$7,500 offer on each Plaintiff. Each offer, however, required the individual offeree to obtain “[a] dismissal of this action against City of Riverside and Victor Lee Schmitz, with prejudice.” (Omofoma Decl., Ex. B, p. 1.) “This action” included the claims of both Plaintiffs, Thomas Langston and Judy Langston. Neither Plaintiff could independently dismiss the other Plaintiff’s claims. Each offer therefore required the consent or performance of the other Plaintiff before the offeree could perform or sign on the settlement.

Ordinarily, a §998 offer involving multiple plaintiffs must permit each plaintiff to accept independently. A joint or conditional offer may qualify where the plaintiffs possess a unity of interest and seek recovery for a single, indivisible injury. Wrongful death heirs ordinarily have such a unity of interest because wrongful death claims may be brought as a single, joint, and indivisible action. (*McDaniel v. Asuncion* (2013) 214 Cal.App.4th 1201, 1206-08.)

However, this exception does not necessarily apply when the action also includes survival claims. This is because survival and wrongful death claims are “distinct” claims, where Plaintiffs seek recovery for different personal damages and respective legal rights. (*Williams v. The Pep Boys-Manny, Moe & Jack of California* (2018) 27 Cal.App.5th 225, 229 and 244.)

Here, the FAC alleges that Plaintiffs “bring this action both on their own behalf under Code of Civil Procedure, § 377.60, and as successors-in-interest to the Decedent under Code of Civil Procedure, § 377.30.” (FAC ¶ 6.) The offers did not distinguish between those claims. Omofoma Decl., Ex. B.) Critically, although Defendants apportioned the monetary offers by serving each Plaintiff with a \$7,500 offer, each offer still required dismissal of the entire action. The condition prevented either Plaintiff from accepting without the other Plaintiff’s agreement. The offers therefore did not permit each Plaintiff’s independent acceptance. The offers are deemed invalid.

Besides, an offer may be invalid when it is “conditioned upon release of all known and unknown claims” or “waive claims not encompassed within the current lawsuit.” (*Sanford v. Rasnick, supra*, 246 Cal.App.4th at 1131.) Here, the offers required a “release of all claims” without attaching a release or defining its scope. This presents an additional uncertainty.

Also, contrary to Plaintiffs’ arguments, a modest offer may be reasonable when the offeror reasonably believes it has no liability. However, the court need not resolve the parties’ competing evidence regarding good faith since the offers were facially invalid.

For all the foregoing reasons, therefore, Defendants are not be allowed to recover expert witness fees under §998. The memorandum of costs lists \$218,960.93 under Item 8 (See, amended memorandum of costs filed 7/2/26), but Plaintiffs' motion repeatedly identifies the amount as \$218,925.93. Because the court strikes Item 8b in its entirety, the court taxes the full \$218,960.93 as appears in the cost memo.

With their opposition, Defendants concede that the \$4,331.76 in investigation expenses under Item 15 should be removed. The court taxes \$4,331.76.

Plaintiffs also challenge \$51,990.61 in deposition costs under Item 4. Costs of "[t]aking, video recording, and transcribing necessary depositions" are allowable, but they must be "reasonably necessary to the conduct of the litigation" and "reasonable in amount." (CCP § 1033.5(a)(3)(A), § 1033.5(c)(2)-(3).) Plaintiffs specifically identify a \$440 charge described as a "duplicate video fee" for the Plaintiffs' depositions (1/15/26), a \$310 charge for serving objections on Plaintiffs' counsel (6/26/25), post-verdict video charges of \$326.25 (6/4/26) and \$396.25 (5/28/26), and a \$57.95 shipping charge of a flash drive (3/26/26). Defendants have not substantiated these particular charges. The court therefore taxes Item 4 by \$1,530.45, consisting of \$440 + 310 + 326.25 + 396.25 + 57.95. Plaintiffs have not established a basis to tax the remainder of Item 4.

Plaintiffs also challenge \$17,623.78 in process service costs under Item 5. Section 1033.5(a)(4) permits service of process costs. It does not automatically permit recovery of subpoena drafting charges or photocopying. Plaintiffs identify \$3,859.12 in "subpoena drafting and issuance charges," \$329.10 in copying charges (\$94.85+94.5+139.75), a duplicated \$275 invoice for personal service on Mark Bethel dated in January 2025, a \$71.94 charge for serving deposition objections (2 x \$35.97), a \$55 "Same-day e-service fee," a \$149.95 charge to serve an "on-call letter," and \$821.13 in "rush and out of state changes." Defendants, with their opposition, do not address these charges individually or show that they are reasonably necessary. The court therefore taxes Item 5 by \$5,561.24.

Plaintiffs finally challenge \$62,038.20 in "court reporter/transcript fees" under Item 11. "Court reporter fees as established by statute" are allowable, but "[t]ranscripts of court proceedings not ordered by the court" are not allowable. (CCP § 1033.5(a)(11), (b)(5).) Defendants do not establish that the court ordered the 4/16/26 transcript, for which they claim \$455. The court therefore taxes that amount. Plaintiffs also identify 2 separate court reporter invoices for the same day on 4/20/26 (one for \$2,545.70 and another for \$3,235.85). Defendants provide no evidence explaining why two charges were reasonably incurred for the same trial date. Since a trial occurred on 4/20/26, but Defendants did not establish that the charges represented different reporters or services, the court taxes the lower charge of \$2,545.70. (CCP § 1033.5(a)(11).) The court therefore taxes Item 11 by \$3,000.70, consisting of charges of \$455 + \$2,545.70.

Defendants also request that the court requires Plaintiffs to pay one-half of the court reporter expenses, reasoning that the "only reason Plaintiffs have a record to cite too is because Defendants picked up the tab for the court reporter." This request is not proper through an opposition. The court denies the request.

For the foregoing reasons, the court taxes costs as follows: \$1,530.45 (Item 4, deposition costs) + \$5,561.24 (Item 5, service of process) + \$218,960.93 (Item 8b, expert witness) + \$3,000.70 (Item 11, court reporter and transcript) + \$4,331.76 (Item 15, investigation expenses) = \$ 233,385.08 in total.

Accordingly, Defendants' recoverable costs are reduced from \$358,788.51 to \$125,403.43.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2406562	ANDOH vs AMERICAN HONDA MOTOR CO., INC.	MOTION FOR TERMINATING SANCTIONS, INCLUDING TO STRIKE DEFENDANTS ANSWER

Tentative Ruling:

Summary of Ruling:

The Court denies Deny the motion as the evidence presented in Opposition shows Plaintiff did not provide notice of the court's rulings on its discovery orders..

Facts/Procedural Summary

This is a lemon law case. On January 25, 2023, Plaintiff purchased a certified pre-owned 2019 Acura RDX. Plaintiff alleges violations of the written warranty provided at the time of sale.

The parties have engaged in various discovery disputes and motions throughout the litigation. On February 10, 2026, the court granted Plaintiff's Motion to Compel the PMK deposition. Defendant was ordered to produce its PMK within thirty calendar days from entry of the order and to produce responses and production of documents to the associated Request for Production of Documents at the time of the PMK deposition. (2/10/26 Order.)

Defendant did not comply with that order so Plaintiff brought another motion to force Defendant to comply. Defendant did not oppose the motion and the court granted the motion on June 4, 2026. (8/21/26 Order.)

Plaintiff now brings the instant motion for terminating sanctions and asks the court to strike Defendant's Answer and enter default against Defendant. Plaintiff notes Defendant still has not produced a PMK for deposition and has not provided any responsive documents, despite the court's two orders requiring it to do so. Plaintiff argues terminating sanctions are appropriate under CCP §§ 2023.010 and 2023.030.

In Opposition, Defendant argues the Court directed Plaintiff to give notice of the two rulings but did not do so. Defendant states Plaintiff simply never served notice of the February 10, 2026, ruling. (Zipser Decl. ¶2.) Defendant contends Plaintiff did not serve